

reason that, in his view, the fathers of illegitimate children were not within the scope of Art. 602.²

Appellant argues that this interpretation of Art. 602 discriminates between legitimate and illegitimate children without rational foundation and therefore violates the Equal Protection Clause of the Fourteenth Amendment. Cf. *Gomez v. Perez*, 409 U. S. 535 (1973); *Weber v. Aetna Casualty & Surety Co.*, 406 U. S. 164 (1972); *Glonn v. American Guarantee & Liability Ins. Co.*, 391 U. S. 73 (1968); *Levy v. Louisiana*, 391 U. S. 68 (1968). But cf. *Labine v. Vincent*, 401 U. S. 532 (1971). Although her complaint is not entirely clear on this point, she apparently seeks an injunction running against the district attorney forbidding him from declining prosecution on the ground that the unsupported child is illegitimate.

Before we can consider the merits of appellant's claim or the propriety of the relief requested, however, appellant must first demonstrate that she is entitled to invoke the judicial process. She must, in other words, show that the facts alleged present the court with a "case or controversy" in the constitutional sense and that she is a proper plaintiff to raise the issues sought to be litigated. The threshold question which must be answered is whether the appellant has "alleged such a personal stake in the outcome of the controversy as to assure that concrete adverseness which sharpens the presentation of issues upon which the court so largely depends for illumination of difficult constitutional questions." *Baker v. Carr*, 369 U. S. 186, 204 (1962).

Recent decisions by this Court have greatly expanded the types of "personal stake[s]" which are capable of

² Appellant attached to her complaint an affidavit, signed by an assistant district attorney, stating that the State was unable to institute prosecution "due to caselaw construing Art. 602 of the Penal Code to be inapplicable to fathers of illegitimate children."